

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

DINA GOODWIN,

Plaintiff,

vs.

**THE CITY OF NEW YORK, OFFICER
RONNIE CAUCHI, SHIELD NO. 6217,
OFFICER JOHN DOE #1, OFFICER
JOHN DOE #2, PARTNERS IN CARE
INC., AND TAWREDOU BINTOU
TOURE,**

Defendants.

SUMMONS

Index No. _____

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the county where the cause of action arose.

Dated: New York, New York
June 12, 2018

Rickner PLLC

By:

Rob Rickner

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Attorney for Plaintiff

TO:

The City of New York
100 Church St
New York, NY 10007

Officer Ronnie Cauchi
Internal Affairs
315 Hudson St
New York, NY 10013

John Doe #1

John Doe #2

Partners in Care
1250 Broadway
New York, NY 10001

Tawredou Bintou Torre

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY****DINA GOODWIN,**

Plaintiff,

vs.

**THE CITY OF NEW YORK, OFFICER
RONNIE CAUCHI, SHIELD NO. 6217,
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JOHN DOE #2, PARTNERS IN CARE
INC., AND TAWREDOU BINTOU
TOURE,**

Defendants.

COMPLAINT**Index No. _____**

Plaintiff Dina Goodwin, by her attorney at Rickner PLLC, complaining of the defendants, respectfully alleges the following:

PRELIMINARY STATEMENT

1. Plaintiff Dina Goodwin brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to the statutory and common law of the State of New York for assault, battery, and false imprisonment; pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of her rights under the Constitution of the United States of America; and under the New York State Constitution.

THE PARTIES, JURISDICTION, AND VENUE

2. At all times hereinafter mentioned, the plaintiff Dina Goodwin ("Ms. Goodwin" or "Plaintiff") was a resident of the County of Bronx, State of New York.

3. Defendant City of New York was and is a municipality that is a political subdivision of the State of New York, was the employer of the officer defendants, and is and was

at all times relevant to this Complaint responsible for the policies, practices, and customs of the New York City Police Department (“NYPD”).

4. Defendant Ronnie Cauchi, Shield Number 6217, (Officer “Cauchi”) was at all times relevant to this Complaint a duly appointed and acting officer of the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. He is sued in his individual capacity.

5. Defendant Officer Cauchi is entitled to indemnification under New York General Municipal Law Section 50-k and by contract.

6. Defendant John Doe #1 is an unknown Asian officer (“John Doe #1 or “the Asian officer”) who was working with Officer Cauchi, and was at all times relevant to this Complaint a duly appointed and acting officer of the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. He is sued in his individual capacity.

7. Defendant John Doe #1 is entitled to indemnification under New York General Municipal Law Section 50-k and by contract.

8. Defendant John Doe #2 is an unknown NYPD sergeant who was working with Officer Cauchi, and was at all times relevant to this Complaint a duly appointed and acting officer of the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. He is sued in his individual capacity.

9. Defendant John Doe #2 is entitled to indemnification under New York General Municipal Law Section 50-k and by contract.

10. Defendant Partners in Care Inc. (“Partners in Care”) is a private company, which is a subsidiary of Visiting Nurses Services, that offers visiting nurse services, and other home health care, in New York, New York.

11. Defendant Tawredau Bintou Toure (“Ms. Toure”) was at all times relevant herein an employee of Partners in Care, and was acting within the scope of her employment.

12. The acts and omissions giving rise to this Complaint occurred in New York County.

13. Plaintiff has complied with the requirements of New York City General Municipal Law § 50-i. Plaintiff made and served a notice of claim on all municipal defendants within the time required by New York General Municipal Law § 50-e. More than thirty days have elapsed since the service of those notices, and no offer of settlement has been made.

14. Plaintiff submitted to a hearing pursuant to New York General Municipal Law § 50-h on December 8, 2017.

15. Plaintiff's damages exceed \$25,000.

16. Accordingly, this Court has personal and subject matter jurisdiction over this matter, and venue in New York County is proper.

JURY DEMAND

17. Plaintiff Dina Goodwin respectfully demands a trial by jury of all issues in this matter.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

18. On or about June 7, 2017, Plaintiff Dina Goodwin lodged a series of complaints with Partners in Care, because of the substandard care that Tawredou Bintou Toure was providing Ms. Goodwin's mother, as her home health aide. Ms. Goodwin's mother is older and has cognitive and physical infirmities, which require a home health aide. But Ms. Toure's care was abysmal, and endangered Ms. Goodwin's mother, including failing to obtain the medication she needed.

19. Partners in Care promised to send a new home health aide, and admitted that Ms. Toure's failures were unacceptable. Ms. Goodwin also spoke to Ms. Toure, and told her that she should not be treating her mother any longer.

20. On June 13, 2017, Plaintiff Ms. Goodwin called her mother at her apartment in Manhattan, and was shocked to discover Ms. Toure was there, rather than a new home health aide. So she went to the apartment. And when Ms. Toure would not leave, Ms. Goodwin called the police. While waiting for the police, Ms. Toure swung her ID card back and forth in Ms. Goodwin's face and pushed Ms. Goodwin.

21. Approximately three hours after Ms. Goodwin's initial call, Officer Cauchi, who is white, and another unknown Asian officer arrived at the apartment. Ms. Toure was yelling, claiming that she had her knapsack on her shoulder and that Ms. Goodwin pulled it off violently, injuring her shoulder. Ms. Goodwin's mother denied this, saying the bag was on the table and that Ms. Goodwin had not assaulted her.

22. Ms. Toure then claims that the neighbors saw Ms. Goodwin injure her; she said they were witnesses. But when the Asian officer went to ask the neighbors, the neighbors denied seeing any assault of any kind.

23. Ms. Toure then claims she has the assault on video, but when Officer Cauchi asked to see it, she admitted there was no recording.

24. In addition, Ms. Toure had no physical marks on her, and she denied needing medical attention.

25. At this point, the officers became impatient and did not appear to have any idea what to do. So the Asian officer called a sergeant, John Doe #2, who said to arrest Ms. Goodwin. After the call, the Asian officer, John Doe #1, placed handcuffs on Ms. Goodwin, who at that point was crying.

26. Ms. Toure actually objected to Ms. Goodwin's arrest, saying that she did not want anything to happen to Ms. Goodwin, but Officer Cauchi told Ms. Toure that she would be arrested if she had lied to them.

27. Ms. Goodwin was taken to the precinct for approximately two hours and received a desk appearance ticket.

28. On July 14, 2017, even though Ms. Toure's story was objectively unbelievable and had been contradicted multiple times, Officer Cauchi signed a misdemeanor complaint, initiating process against Ms. Goodwin.

29. She went to court on August 15, 2017, and was charged with a series of assault and harassment charges. This was in fact the first time that she learned exactly what Ms. Toure was claiming, given that Ms. Toure never actually told the officers (falsely) that she had been pushed while Ms. Goodwin was present or within earshot.

30. She returned on September 11, 2017, but the case was adjourned. When she arrived a third time, on November 16, 2017, the case was dismissed on speedy trial grounds

because Ms. Toure refused to sign a deposition supporting Officer Cauchi's claims; she refused to reiterate the false statements.

31. On or about August 2017, after Ms. Goodwin issued a complaint to the New York State Department of Health, Partners in Care was found to have violated Title 10 of New York Codes, Rules, and Regulations, and corrective action was required.

INJURIES AND DAMAGES

32. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to her person, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

33. Plaintiff did not commit any illegal acts or offenses on June 13, 2017.

34. The conduct of Defendants directly and proximately caused Plaintiff to suffer loss of liberty, physical and emotional injury, loss of income, mental anguish, humiliation and embarrassment.

35. Defendants acted with reckless and wanton disregard for the rights of Plaintiff.

36. As a result of all of the acts alleged herein, Plaintiff suffered and continues to suffer mental pain and anguish, and emotional distress, as well as economic loss.

37. In particular, this wrongful arrest prevented Ms. Goodwin from renewing her license as a nutritionist, which cost her a job that would have paid her \$70,000 a year.

38. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
ASSAULT AND BATTERY UNDER STATE LAW
AGAINST OFFICER CAUCHI, JOHN DOE #1, JOHN DOE #2
AND THE CITY OF NEW YORK**

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. On June 13, 2017, John Doe #1 intentionally made physical contact with Plaintiff, and a reasonable person would find this contact offensive. John Doe #1 was assisted in the arrest by Officer Cauchi, and the arrest was based on the explicit instructions of John Doe #2, a superior officer.

41. This physical contact was without Plaintiff's consent.

42. Defendant the City of New York is vicariously liable for these actions, and thus for Plaintiff's injury and damages, because Officer Cauchi, John Doe #1, and John Doe #2 were acting in furtherance of the City of New York's business and within the scope of the City of New York's authority.

**SECOND CLAIM FOR RELIEF:
FALSE IMPRISONMENT UNDER STATE LAW
AGAINST OFFICER CAUCHI, JOHN DOE #1, JOHN DOE #2, MS. TOURE,
THE CITY OF NEW YORK AND PARTNERS IN CARE**

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. On June 13, 2017, Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by John Doe #1, assisted by Officer Cauchi, based on the false statements and explicit encouragement of Ms. Toure, despite her statements being objectively unbelievable, and based on the unlawful orders of John Doe #2.

45. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

46. Plaintiff was conscious of the confinement and did not consent to such confinement.

47. Defendants the City of New York and Partners in Care are vicariously liable for the actions of Officer Cauchi, John Doe #1, John Doe #2, and Ms. Toure respectively, and thus for Plaintiff's injury and damages, because the Individual Defendants were acting in furtherance of the City of New York and Partner in Care's business and within the scope of their authority.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST OFFICER CAUCHI, JOHN DOE #1, JOHN DOE #2**

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. On June 13, 2017, Plaintiff was arrested, handcuffed by John Doe #1, and detained in the absence of probable cause by John Doe #1 and Officer Cauchi, based on the false statements and explicit encouragement of Ms. Toure, despite her statements being objectively unbelievable, and the arrest was based on the explicit instructions of John Doe #2, a superior officer.

50. That by virtue of the aforementioned acts, Plaintiff was deprived of her civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and Officer Cauchi, John Doe #1, John Doe #2, and/or Ms. Toure therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

51. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, psychological and emotional injuries, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

**FOURTH CLAIM FOR RELIEF:
INTENTIONAL, RECKLESS, OR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS UNDER STATE LAW AGAINST OFFICER CAUCHI,
JOHN DOE #1, JOHN DOE #2, AND MS. TOURE**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. The improper, deliberate, and traumatizing conduct of Officer Cauchi, John Doe #1, John Doe #2, and/or Ms. Toure in deliberately causing, or recklessly disregarding the risk of causing, the traumatic assault on and false arrest of Plaintiff directly and proximately caused the grievous injuries and damages set forth above.

54. In the alternative, Officer Cauchi, John Doe #1, John Doe #2, and/or Ms. Toure acted negligently and grossly negligently, and in breach of their duties owed to Plaintiff.

55. Defendants the City of New York and Partners in Care are vicariously liable for the actions of Officer Cauchi John Doe #1, John Doe #2, and Ms. Toure respectively, and thus for Plaintiff's injury and damages, because the Individual Defendants were acting in furtherance of the City of New York and Partner in Care's business and within the scope of their authority.

**FIFTH CLAIM FOR RELIEF:
FAILURE TO TRAIN AND SUPERVISE UNDER STATE LAW
AGAINST THE CITY OF NEW YORK AND PARTNERS IN CARE**

56. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows:

57. At all times relevant to this Complaint, the City of New York knew that Officer Cauchi and Joh Doe #1 would face instances where they needed to evaluate whether there was

probable cause to make an arrest, and where John Doe #2 would need to advise officers as to when to make an arrest.

58. The City of New York failed to train and properly supervise John Doe #1, John Doe #2, and Officer Cauchi. This negligent failure was the proximate cause of Plaintiff's injuries, detailed above.

59. Under the doctrine of respondeat superior, the City of New York is liable for its agents' state law torts, detailed above.

60. At all times relevant to this Complaint, Partners in Care knew that Ms. Toure was providing substandard care to Ms. Goodwin's mother, and in fact admitted that this was unacceptable.

61. Yet Partners in Care allowed Ms. Toure to continue to provide care to Ms. Goodwin, a failure in supervision that proximately caused the events leading to Ms. Goodwin's arrest.

**SIXTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST OFFICER CAUCHI AND THE CITY OF NEW YORK**

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

63. That by virtue of the aforementioned acts, Defendants Officer Cauchi, John Doe #1, John Doe #2, and the City of New York are liable to Plaintiff for violating her right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

64. The acts and conduct of the agents and employees of defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

WHEREFORE, Plaintiff Dina Goodwin demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 12, 2018

Rickner PLLC

By: /s/

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